PAINTING SERVICES AGREEMENT

Z-Handyman · Tampa Bay's Commercial Painting Specialists (813) 540-9095 · contact@z-handy.com · Greater Tampa Metro Area Business Address: 2850 34th St N., Suite 105, St. Petersburg, FL 33713 License / Registration No. (if applicable): N/A

Agreement Date: _____ **Contractor:** Z-Handyman LLC, a Florida limited liability company ("Contractor," "we," "us," "our") **Client:** C & D Printing, Inc., a Florida corporation ("Client," "you," "your") **Client Mailing Address:** 12150 28th Street North, St. Petersburg, FL 33716 **Client Phone:** (727) 572-9999 **Email:** nlaor@cndprinting.com

Project Address ("the Property"): 12150 28th Street North St. Petersburg, FL 33716

Property Type: ☒ Commercial ☐ Residential (1–4 units) ☐ Multi-family (5+ units) **Approved Estimate / Quote No.:** 2608001 **Dated:** August 27, 2026

This Agreement is entered into between the parties above and incorporates the approved estimate referenced above (the "Quote"), attached as **Exhibit A**.

1. Scope of Work

Contractor will furnish all labor, materials, tools, and equipment necessary to perform the painting work described in the Quote and summarized below (the "Work"):

Areas / surfaces to be painted: Exterior painted surfaces of the building at the Property, totaling approximately **13,320 square feet**, measured as shown on the Coverage Diagram in the Quote (Exhibit A):

Area	Dimensions	Sq Ft
Side elevations (2)	237 ft × 20 ft × 2	9,480
Front elevation (1)	147 ft × 20 ft	2,940
Exterior columns (4)	15 ft × 15 ft × 4	900
Total		**13,320**

Measurements are approximate. The Contract Price is a lump sum and is not adjusted for minor variance between these figures and field conditions.

Preparation included. Surface preparation is included in the Contract Price and covers cleaning, washing, scraping, sanding, patching of minor imperfections, caulking, masking, and spot- or full-priming, each performed to the extent Contractor deems necessary in its professional judgment to prepare the listed surfaces for coating in accordance with the coating manufacturer's written instructions and standard industry practice.

Materials. The coating system, products, number of finish coats, and quantities are those set forth in the Quote (Exhibit A).

Color(s) / sheen(s): To be selected by Client after execution of this Agreement and confirmed in writing (email is sufficient). Contractor will not order materials or schedule the Work until Client's written color and sheen selections are received, and any schedule dates are extended day-for-day until they are. If Client's selections require deep-base or custom-tinted product, or more finish coats than the number stated in the Quote to achieve uniform coverage, the resulting increase will be handled by written Change Order under Section 6.

Specifically excluded from the Work: The rear building elevation, which Client has confirmed is excluded and which is neither shown on the Coverage Diagram nor included in the measured area above; interior surfaces; roof and roofing components; gutters, downspouts, and flashing; windows, glass, and glazing; doors and door hardware; signage; carpentry, wood rot, and structural repair; stucco, masonry, concrete, and drywall repair; parking lot striping and pavement coatings; permits; lead abatement; mold remediation; and any surface not expressly listed above or in the Quote.

Only the items expressly listed above and in the Quote are included. Anything not listed is excluded and, if requested, will be handled by written Change Order under Section 6.

2. Contractor's Responsibilities

Contractor shall:

1. **Surface preparation.** Prepare all surfaces within the Scope of Work in accordance with the coating manufacturer's written instructions and standard industry practice, using the preparation methods described in Section 1 to the extent Contractor deems necessary.
2. **Application.** Apply the coating system specified in the Quote in the number of coats stated, using materials of the brand and product line specified (or an equal or better substitute if the specified product is unavailable, subject to Client's written approval).
3. **Protection.** Take reasonable measures to protect floors, fixtures, landscaping, furnishings, and adjacent surfaces with drop cloths, plastic, and masking.
4. **Daily site cleanup.** Remove debris, coil hoses and cords, stack materials safely, and leave work areas broom-clean at the end of each work day. Upon completion, remove all Contractor-owned tools, equipment, masking, and jobsite waste.
5. **Workforce.** Supervise its employees and subcontractors and perform the Work in a workmanlike manner.
6. **Insurance.** Prior to commencing the Work, and continuously throughout its performance, obtain and maintain general liability insurance and, where required by Florida law, workers' compensation coverage. Contractor shall furnish Client with a certificate of insurance before Work begins, and shall not commence Work until that certificate has been issued.
7. **Compliance.** Perform the Work in compliance with applicable federal, state, and local laws, ordinances, and codes.

Work Schedule Estimated Start Date: _____ Estimated Completion Date: _____ Approved Work Hours / Days: Monday through Saturday, 8:00 AM to 6:00 PM, excluding federal holidays, or as otherwise coordinated in advance with Client's on-site contact.

Start and completion dates are estimates and all Work is **weather permitting**. Exterior Work in particular is subject to Florida's frequent rain, storms, and high humidity, and Contractor will not apply coatings when temperature, humidity, precipitation, or surface moisture fall outside the coating manufacturer's written

specifications. Time is not of the essence unless a firm date is separately agreed in writing and signed by both parties. Dates shall be extended day-for-day, without penalty to Contractor, for delays caused by weather, Client, Client's other contractors, material shortages, or events described in Section 15.

3. Client's Responsibilities

Client shall, at Client's sole cost and expense:

1. **Access.** Provide Contractor with safe, unobstructed, and timely access to the Property and to the areas to be painted during the approved work hours, including keys, codes, gate/elevator access, parking, and access to occupied or secured spaces as needed.
2. **Clear the work areas.** Remove or relocate vehicles, furniture, electronics, wall hangings, window treatments, valuables, plants, personal property, merchandise, inventory, and any fragile or irreplaceable items from and around the areas to be painted before the scheduled start. Contractor may move ordinary furniture as a courtesy only if agreed in writing, and Client assumes the risk of loss or damage to items Client has not removed.
3. **Safe conditions.** Provide a work environment free of known hazards, including secure footing for ladders and lifts, functioning smoke/CO detectors, and disclosure of any known unsafe condition, structural defect, active leak, pest infestation, or hazardous material at the Property.
4. **Pets and occupants.** Secure all pets and keep children, occupants, tenants, and Client's other vendors clear of active work areas, wet coatings, ladders, lifts, scaffolding, and equipment.
5. **Utilities.** Provide reasonable access at no charge to electricity and water at the Property for the duration of the Work.
6. **Approvals.** Obtain and pay for any HOA, condominium association, landlord, tenant, or architectural review approvals, and any permits or licenses required for the Work (unless expressly assumed by Contractor in the Quote).
7. **Decisions.** Timely furnish color and sheen selections and timely respond to requests for approvals, Change Orders, and inspections.
8. **Authority.** Warrant that Client owns the Property or is duly authorized by the owner to contract for the Work.

If Client fails to perform any of the above and the failure delays or increases the cost of the Work, Contractor may (a) suspend the Work, (b) reschedule at the next available opening, and/or (c) charge for standby time, remobilization, and additional labor and materials at Contractor's then-current rates by Change Order.

Standby / Remobilization Rate: $80.00 per hour, per crew member, plus a **$80.00** remobilization charge per additional trip or mobilization required.

4. Contract Price

Total Contract Price (as approved in the Quote): $12,000.00

The Contract Price includes all labor, materials, equipment, and cleanup described in Section 1 and the Quote. Applicable Florida sales and use tax is ☒ included ☐ not included (if not included, added at _____%).

Lump sum; improvement to real property. The Contract Price is a single lump sum for an improvement to real property. Contractor is the ultimate consumer of all materials incorporated into the Work and is responsible for all Florida sales and use tax on those materials, which Contractor pays at the time of purchase. No sales tax is separately stated or charged to Client. Any itemization of materials, quantities, or unit prices appearing in the Quote is provided for Client's information only and does not constitute a separately stated sale of tangible personal property to Client.

5. Payment Terms

Client shall pay the Contract Price in three installments:

#	Milestone	Percentage	Amount	Due
1	**Deposit** — due upon signing this Agreement; Work will not be scheduled or materials ordered until received	**40%**	$4,800.00	Upon execution
2	**Mid-project milestone** — due upon completion of all surface preparation and priming on all surfaces within the Scope of Work	**30%**	$3,600.00	Net 10 from invoice
3	**Final payment** — due upon Substantial Completion and the walkthrough described in Section 7	**30%**	$3,600.00	Net 10 from invoice

1. **Due date.** The deposit installment is due upon execution of this Agreement, and Contractor is not obligated to schedule the Work or order materials until it is received. Each remaining installment is due **within ten (10) calendar days** after Contractor's invoice is delivered to Client. The parties expressly agree that this payment period supersedes any different default period that would otherwise apply under Section 715.12, Florida Statutes.
2. **Late payment.** Past-due amounts accrue interest at the rate of **one and one-half percent (1.5%) per month (18% per annum)**, or the maximum rate permitted by Chapter 687, Florida Statutes, whichever is less, from the due date until paid in full.
3. **Suspension.** If any payment is more than **seven (7) days** past due, Contractor may, after giving Client the written notice required by Section 715.12, Florida Statutes, suspend the Work and remove its personnel and equipment from the Property until payment is received. Contractor is not liable for delay or damages resulting from a suspension under this Section, and the schedule shall be extended accordingly. Contractor may charge the standby and remobilization rates in Section 3 to resume suspended Work.
4. **No withholding.** Client may not withhold payment for punch-list or cosmetic items that do not prevent use of the painted areas; instead, Client may withhold **150% of the reasonable value** of properly documented incomplete items until they are corrected.
5. **Costs of collection.** Client shall reimburse Contractor for returned-check charges and reasonable costs of collection, subject to Section 17.
6. **Deposit application.** The deposit is applied to the Contract Price and is not a penalty or separate fee. Consistent with Section 489.126, Florida Statutes, where applicable, Contractor will apply for any required permits within 30 days and commence Work within 90 days after receipt of the deposit, absent a written agreement otherwise or a delay caused by Client or by conditions beyond Contractor's control.

7. **Payee and form of payment.** All payments shall be made payable to **Z-Handyman LLC**. The deposit installment shall be paid by cashier's check, certified check, wire transfer, ACH transfer, or business check drawn on Client's account. Subsequent installments may additionally be paid by credit or debit card where Contractor offers that option. Contractor may decline to schedule Work or order materials until a payment has cleared. Contractor may pass through a processing fee on credit card payments, not to exceed the lesser of three percent (3%) or Contractor's actual cost of acceptance, disclosed to Client before payment; no such fee will be charged on debit card payments.
8. **Chargebacks and reversals.** Client shall not initiate a chargeback, ACH reversal, or stop-payment order with respect to Work performed in accordance with this Agreement, and shall instead give Contractor written notice and an opportunity to cure as provided in Section 16. If Client initiates a chargeback, reversal, or stop-payment that is resolved in Contractor's favor or that relates to Work Contractor has performed, Client shall reimburse Contractor for the disputed amount together with all related processing fees and costs of collection under Section 5.5.

6. Change Orders and Concealed Conditions

1. Any addition to, deletion from, or modification of the Work — including added surfaces, color changes after materials are ordered, additional coats, or additional preparation — must be authorized by a **written Change Order signed by both parties** stating the change in scope, price, and schedule. Contractor is not obligated to perform, and Client is not obligated to pay for, unwritten changes.
2. **Concealed or unforeseen conditions.** Contractor's price assumes sound, paint-ready substrates. If Contractor encounters conditions not reasonably discoverable at the time of the estimate — including wood rot, hidden water intrusion, mold or mildew growth, failed prior coatings, incompatible or unknown existing coatings, stucco or drywall damage, insect damage, structural defects, or code violations — Contractor will stop Work in the affected area and promptly notify Client. Any resulting corrective work is outside the Scope of Work and requires a Change Order.
3. **Hazardous materials.** Contractor is not a hazardous-materials contractor and is not responsible for the detection, handling, abatement, encapsulation, or disposal of asbestos, lead-based paint, mold, or other hazardous substances. If such materials are encountered, Contractor may suspend Work in the affected area until Client, at Client's expense, has the condition assessed and remediated by a qualified licensed specialist.
4. **Pre-1978 structures.** For target housing and child-occupied facilities built before 1978, Client acknowledges receipt of the EPA pamphlet *"Renovate Right: Important Lead Hazard Information for Families, Child Care Providers and Schools"* as required by the EPA Renovation, Repair and Painting (RRP) Rule, 40 C.F.R. Part 745, Subpart E, where applicable. ☒ N/A — the Property is not target housing or a child-occupied facility as defined by the RRP Rule.

7. Substantial Completion, Walkthrough, and Acceptance

1. The Work is **Substantially Complete** when the painted areas are finished in accordance with Section 1 and are usable for their intended purpose, subject only to minor punch-list items.
2. Upon Substantial Completion, the parties (or their authorized representatives) will conduct a joint walkthrough and prepare a written punch list. Contractor will complete punch-list items within **ten (10) days**, weather and access permitting.

3. Client's use or occupancy of the painted areas, or failure to attend a scheduled walkthrough within **three (3) business days** after Contractor's notice that the Work is ready, constitutes acceptance of the Work as complete, and final payment becomes due.
4. Paint requires time to fully cure. Client shall avoid washing, scrubbing, taping, leaning objects against, or reinstalling fixtures on newly coated surfaces for at least **30 days** after application, and shall follow any written care instructions provided by Contractor or the coating manufacturer.

8. Three-Year Limited Workmanship Warranty

Coverage. Contractor warrants that the Work will be free from defects in workmanship for a period of **three (3) years** from the date of Substantial Completion (the "Warranty Period"). Covered defects are limited to peeling, blistering, flaking, chipping, or delamination of the applied coating that is attributable to Contractor's surface preparation or application, and to excessive or uneven fading or discoloration attributable to Contractor's application.

Sole and exclusive remedy. Contractor's sole obligation, and Client's sole and exclusive remedy, for a covered defect is, at Contractor's option, to **repair or repaint the affected area** using the same or comparable materials, at no charge for labor or materials. Contractor does not warrant an exact color match between original and touched-up or repainted areas, as coatings weather and manufacturers' formulations change. Contractor may elect to coat to the nearest natural break line rather than repaint an entire surface or elevation.

Exclusions. This warranty does **not** cover, and Contractor is not responsible for:

(a) defects in the coating product itself (which are covered, if at all, by the manufacturer's written warranty, which Contractor hereby assigns to Client to the extent assignable); (b) failures caused by moisture intrusion, water leaks, high humidity, condensation, hydrostatic pressure, efflorescence, or improper drainage, ventilation, flashing, caulk, grade, or roofing; (c) mold, mildew, algae, or fungal growth; (d) rust, corrosion, wood rot, insect or pest damage, or deterioration of the underlying substrate; (e) settling, structural movement, cracking of stucco, drywall, masonry, or joints, or nail pops; (f) failure or incompatibility of previously applied coatings, or of substrates that Client declined to have prepared, primed, repaired, or replaced as recommended by Contractor (see Section 9); (g) surfaces not painted by Contractor, materials supplied by Client or others, and areas outside the Scope of Work; (h) damage caused by Client, Client's tenants, occupants, pets, agents, or other contractors; vandalism; abrasion; pressure washing; harsh cleaners or solvents; impact; or abuse or misuse; (i) hurricanes, tropical storms, named windstorms, floods, hail, lightning, fire, freeze, earthquake, or other acts of God or casualty; (j) normal wear and tear, ordinary fading, chalking, or weathering consistent with the product's expected performance in a coastal or subtropical climate; (k) horizontal or walked-on surfaces, decks, floors, stairs, driveways, roofs, and pool decks unless expressly listed in Section 1 as warranted; (l) galvanized metal, aluminum, vinyl, plastic, cedar, redwood, pressure-treated lumber, and other bleed-through- or adhesion-prone substrates, unless expressly warranted in writing; and (m) any Work for which Contractor has not been paid in full.

Conditions. This warranty is conditioned on (i) payment of the Contract Price in full, (ii) Client's **written notice** to Contractor describing the defect and its location, delivered within **thirty (30) days** after the defect is discovered and in all events before the Warranty Period expires, and (iii) Client providing Contractor reasonable access to inspect and to perform warranty work during normal business hours. Contractor shall have a reasonable opportunity to inspect before any repair is made by others; repairs made by others without Contractor's prior written consent void this warranty as to the affected area.

Transfer. This warranty runs to the Client named above and is ☒ non-transferable ☐ transferable one time to a subsequent owner of the Property upon written notice to Contractor within 30 days of transfer.

Disclaimer. EXCEPT FOR THE EXPRESS LIMITED WARRANTY STATED IN THIS SECTION 8, AND TO THE FULLEST EXTENT PERMITTED BY FLORIDA LAW, CONTRACTOR DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED WARRANTY OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE. This warranty gives Client specific legal rights; Client may also have other rights that vary under applicable law.

9. Client-Directed Deviations

If Client directs Contractor to omit or reduce recommended preparation, priming, repair, or coats, or to apply coatings over questionable substrates or in unsuitable weather, Contractor will note the direction below (or in a signed Change Order), and the affected areas are **excluded from the warranty in Section 8** and from Contractor's liability for resulting coating failure.

Noted deviations: ☒ None as of the Agreement Date. Any Client-directed deviation arising after execution will be documented and signed as a Change Order under Section 6, and the affected areas excluded from the Section 8 warranty as provided above.

10. Insurance, Risk of Loss, and Limitation of Liability

1. Prior to commencing the Work and continuously throughout its performance, Contractor shall obtain and maintain commercial general liability insurance with limits of not less than $1,000,000 per occurrence and $2,000,000 general aggregate, and workers' compensation as required by Chapter 440, Florida Statutes, where applicable. A certificate of insurance naming Client as a certificate holder shall be furnished before Work begins.
2. Client shall maintain property and casualty insurance on the Property and its contents in an amount sufficient to cover the full value thereof. Client waives subrogation against Contractor to the extent of insurance proceeds actually received for a covered loss.
3. **TO THE MAXIMUM EXTENT PERMITTED BY LAW, NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS, LOST RENTS, LOSS OF USE, BUSINESS INTERRUPTION, OR DIMINUTION IN VALUE, ARISING OUT OF OR RELATING TO THIS AGREEMENT, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.**
4. **EXCEPT FOR CONTRACTOR'S OBLIGATIONS UNDER THE WARRANTY IN SECTION 8 AND FOR CLAIMS COVERED BY CONTRACTOR'S LIABILITY INSURANCE, CONTRACTOR'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL CONTRACT PRICE ACTUALLY PAID BY CLIENT TO CONTRACTOR.**
5. Nothing in this Section limits liability for gross negligence, willful misconduct, or any liability that may not be limited under Florida law.

11. Indemnification

To the extent permitted by Section 725.06, Florida Statutes, each party shall indemnify, defend, and hold harmless the other party and its officers, employees, and agents from and against claims, damages, losses, and expenses (including reasonable attorney's fees) arising out of bodily injury or property damage to the extent caused by the

negligent acts or omissions of the indemnifying party in connection with the Work. Contractor's total indemnification obligation under this Section is limited to the Total Contract Price, which the parties agree constitutes a specific consideration bargained for and identified in this Agreement.

12. Termination

1. **By Client for convenience.** Client may terminate this Agreement upon written notice. Client shall pay Contractor for all Work performed and materials purchased or ordered through the date of termination, plus Contractor's reasonable demobilization costs and restocking fees, and a termination fee of **fifteen percent (15%)** of the unperformed Contract Price to cover lost overhead and profit. Amounts already paid may be applied to these charges.
2. **By either party for cause.** Either party may terminate for the other party's material breach if the breach is not cured within **seven (7) days** after written notice describing the breach. Non-payment beyond the period in Section 5.3 is a material breach.
3. Termination does not relieve Client of the obligation to pay for Work performed, and does not waive either party's accrued rights or remedies.

13. Florida Construction Lien Law Notice

(The following notice is required by Section 713.015, Florida Statutes, for direct contracts greater than $2,500 between an owner and a contractor for improvements to real property consisting of a single or multiple family dwelling up to and including four units.)

> **ACCORDING TO FLORIDA'S CONSTRUCTION LIEN LAW (SECTIONS 713.001–713.37, FLORIDA STATUTES), THOSE WHO WORK ON YOUR PROPERTY OR PROVIDE MATERIALS AND SERVICES AND ARE NOT PAID IN FULL HAVE A RIGHT TO ENFORCE THEIR CLAIM FOR PAYMENT AGAINST YOUR PROPERTY. THIS CLAIM IS KNOWN AS A CONSTRUCTION LIEN. IF YOUR CONTRACTOR OR A SUBCONTRACTOR FAILS TO PAY SUBCONTRACTORS, SUB-SUBCONTRACTORS, OR MATERIAL SUPPLIERS, THOSE PEOPLE WHO ARE OWED MONEY MAY LOOK TO YOUR PROPERTY FOR PAYMENT, EVEN IF YOU HAVE ALREADY PAID YOUR CONTRACTOR IN FULL. IF YOU FAIL TO PAY YOUR CONTRACTOR, YOUR CONTRACTOR MAY ALSO HAVE A LIEN ON YOUR PROPERTY. THIS MEANS IF A LIEN IS FILED YOUR PROPERTY COULD BE SOLD AGAINST YOUR WILL TO PAY FOR LABOR, MATERIALS, OR OTHER SERVICES THAT YOUR CONTRACTOR OR A SUBCONTRACTOR MAY HAVE FAILED TO PAY. TO PROTECT YOURSELF, YOU SHOULD STIPULATE IN THIS CONTRACT THAT BEFORE ANY PAYMENT IS MADE, YOUR CONTRACTOR IS REQUIRED TO PROVIDE YOU WITH A WRITTEN RELEASE OF LIEN FROM ANY PERSON OR COMPANY THAT HAS PROVIDED TO YOU A "NOTICE TO OWNER." FLORIDA'S CONSTRUCTION LIEN LAW IS COMPLEX, AND IT IS RECOMMENDED THAT YOU CONSULT AN ATTORNEY.**

Upon final payment, Contractor will furnish Client with a final release of lien for the amounts paid, and will obtain releases from any subcontractors or suppliers who have served a Notice to Owner.

14. Right to Cancel *(Home Solicitation Sales)*

(Applies only if this Agreement was signed at Client's residence and is a "home solicitation sale" under Sections 501.021–501.055, Florida Statutes.)

> **YOU, THE BUYER, MAY CANCEL THIS TRANSACTION AT ANY TIME PRIOR TO MIDNIGHT OF THE THIRD BUSINESS DAY AFTER THE DATE OF THIS TRANSACTION. SEE THE ATTACHED NOTICE OF CANCELLATION FORM FOR AN EXPLANATION OF THIS RIGHT.**

To cancel, deliver or mail a signed, dated written notice of cancellation to Contractor at the address on page 1 before that deadline. If Client requests in writing that Work begin before the cancellation period expires, Client remains responsible for the value of Work performed and materials ordered.

☒ Not applicable — this Agreement was not signed at Client's residence.

15. Force Majeure and Weather

Contractor is not liable for delay or failure to perform caused by events beyond its reasonable control, including hurricanes, tropical storms, named windstorms, flooding, rain, excessive humidity, temperatures outside the coating manufacturer's specified application range, fire, epidemic, labor disputes, supply-chain disruption, utility failure, government order, or acts of Client or third parties. Contractor will not apply coatings in conditions that violate the manufacturer's written specifications, and the schedule shall be extended day-for-day for such conditions.

16. Governing Law, Venue, and Dispute Resolution

1. This Agreement is governed by the laws of the **State of Florida**, without regard to its conflict-of-laws rules.
2. **Notice and opportunity to cure (Chapter 558).** Before filing an action for an alleged construction defect, Client shall comply with the notice and opportunity-to-repair requirements of Chapter 558, Florida Statutes, and shall give Contractor a reasonable opportunity to inspect and repair.
3. **Negotiation, then mediation.** The parties shall first attempt to resolve any dispute by good-faith negotiation. If unresolved within 15 days, the parties shall submit the dispute to non-binding mediation in **Pinellas County, Florida** before commencing litigation. **Client shall pay the mediator's fees and administrative costs**, and each party shall bear its own attorney's fees and expenses incurred in the mediation, subject to the prevailing-party provision in Section 17. If a court orders mediation and allocates costs differently under Chapter 44, Florida Statutes, the court's allocation controls, and any amount Contractor is required to advance shall be reimbursed by Client if Contractor is the prevailing party.
4. **Venue.** Any action arising out of this Agreement shall be brought exclusively in the state courts located in **Pinellas County, Florida**, and each party consents to personal jurisdiction and venue there.
5. **Jury trial waiver. TO THE FULLEST EXTENT PERMITTED BY LAW, THE PARTIES KNOWINGLY, VOLUNTARILY, AND INTENTIONALLY WAIVE ANY RIGHT TO A TRIAL BY JURY IN ANY ACTION ARISING OUT OF OR RELATING TO THIS AGREEMENT.** Client Initials: _____ Contractor Initials: _____

17. Attorney's Fees

In any action or proceeding arising out of or relating to this Agreement, the prevailing party shall be entitled to recover its reasonable attorney's fees, paralegal fees, expert fees, and costs, at trial and on appeal, and in any bankruptcy or lien-enforcement proceeding.

18. General Provisions

1. **Independent contractor.** Contractor performs the Work as an independent contractor and not as Client's employee, partner, or joint venturer. Contractor may use qualified subcontractors and remains responsible for their work.
2. **Photography.** Contractor may photograph the completed Work for portfolio, website, and marketing use without identifying Client's name or exact address. ☐ Client opts out.
3. **Notices.** Notices must be in writing and delivered by hand, certified mail, courier, or email to the addresses on page 1, and are effective upon receipt (or, for email, upon confirmed delivery).
4. **Assignment.** Neither party may assign this Agreement without the other's prior written consent, except that Contractor may assign to a successor in connection with a sale of substantially all of its business.
5. **Entire agreement.** This Agreement, together with the Quote (Exhibit A) and any signed Change Orders, is the entire agreement between the parties and supersedes all prior proposals, estimates, discussions, and representations, whether oral or written. In the event of a conflict, this Agreement controls over the Quote.
6. **Amendment; waiver.** This Agreement may be amended only in a writing signed by both parties. A party's failure to enforce a provision is not a waiver of that provision.
7. **Severability.** If any provision is held invalid or unenforceable, the remaining provisions remain in full force and the invalid provision shall be reformed to the minimum extent necessary to make it enforceable.
8. **Counterparts and electronic signatures.** This Agreement may be signed in counterparts and delivered electronically. Electronic signatures are valid and enforceable under the Uniform Electronic Transaction Act, Chapter 668, Part I, Florida Statutes.
9. **Survival.** Sections 8, 10, 11, 16, 17, and 18 survive completion or termination.
10. **Contractor's entity status.** Contractor is a Florida limited liability company, duly organized and active under the laws of the State of Florida. The individual signing below represents that he or she is duly authorized to execute this Agreement on Contractor's behalf.

19. Acknowledgment and Signatures

By signing below, each party acknowledges that it has read and understands this Agreement, including the warranty terms in Section 8, the exclusions and limitations in Sections 8 and 10, the notices in Sections 13 and 14, and the jury-trial waiver in Section 16, and agrees to be bound by them. Client acknowledges receipt of a fully executed copy of this Agreement and a copy of the Quote.

CONTRACTOR — Z-Handyman LLC, a Florida limited liability company

Signature: _____ Date: _____ Print Name: Joseph B. Gore
Title: Manager

CLIENT — C & D Printing, Inc., a Florida corporation

Signature: _____ Date: _____ Print Name: _____ Title / Capacity: _____ ☒ Owner ☐ Authorized agent of owner ☐ Property manager ☐ General contractor

Exhibit A — Approved Quote

(Attach the signed estimate/quote referenced on page 1.)

Template use note: this document is a starting template prepared for Z-Handyman's Florida projects and is not legal advice. Statutory notices, required disclosures, and dollar thresholds change, and requirements differ for residential vs. commercial work and by local jurisdiction. Have a Florida-licensed construction attorney review and finalize this form before use — in particular the Client-pays-mediation provision, and whether the Section 489.1425 Florida Homeowners' Construction Recovery Fund notice must be included for your licensure category.